

Tentative Rulings for July 1, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2205109	HIEBNER VS ALL IN AUTO GROUP	MOTION FOR JUDGMENT IN FAVOR OF EXETER FINANCE, LLC AND AGAINST ALL IN AUTO GROUP

Tentative Ruling:

The order granting motion to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6 was filed June 24, 2025, which ordered All In Auto Group to pay \$23,203.03 (\$17,995.03 in settlement amount, plus \$5,208.00 in attorney fees and costs associated with the motion to enforce settlement).

The unopposed motion is granted. The Court enters judgment in favor of Exeter Finance, LLC in the settlement amount of \$23,203.03, plus attorneys' fees incurred in bringing this motion in the amount of \$900.00 (2 hours at the rate of \$450 per hour), for a total judgment of \$24,103.03.

A hearing re: proposed judgment is set for July 28, 2026, at 8:30 a.m. Moving party is ordered to submit to the court and serve on all parties a proposed final judgment by no later than July 13, 2026. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than July 23, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600306	ORELLANA VS EDGAR LADISLAO BRACAMONTE PORTILLO	DEMURRER ON COMPLAINT

Tentative Ruling:

The hearing is continued to August 5, 2026, at 8:30 a.m. The parties are ordered to meet and confer in good faith to determine whether the issues raised in the demurrer can be resolved, in person, by telephone, or via visual conferencing within ten (10) days of this order. Here, Defendant only sent a letter.

Moving party is ordered to submit a declaration at least ten (10) days prior to the next hearing date addressing the parties' efforts to meet and confer. Failure to meet and confer and/or file a timely declaration as provided herein may result in an order to show cause re: sanctions not to exceed \$1,500. No further briefing is permitted.